

Ajmal v. State of U.P. & 2 Ors.

Allahabad High Court · Division Bench · 3 February 2015 · Criminal Misc. Writ Petition No. 2714 of 2015 · **Writ petition disposed of (FIR not quashed; arrest to follow s.41 CrPC safeguards)**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed; but as the offence does not entail imprisonment beyond seven years, any arrest must comply with the safeguards of Section 41(1)(b) read with Section 41-A of the Cr.P.C. The offence being compoundable, the accused may pursue compounding as provided under the U.P. Electricity Supply Code, 2005. The judgment's substantive holding is procedural/criminal; its contribution to Supply Code jurisprudence is limited to noting the Code as the route for compounding.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::compounding

Compounding of a Section 135 theft offence via the Supply Code

HOLDING

A person accused of electricity theft under Section 135, the offence being compoundable, may seek the compounding remedy 'as provided under the provisions of the Electricity Supply Code, 2005.' The Court did not itself construe any Code clause; the reference is only a pointer to the Code's compounding machinery. ¶ para 5-6 (unnumbered order)

FLAG Thin supply-code content: the ratio concerns FIR-quashing and arrest safeguards (s.41(1)(b) / 41-A Cr.P.C.), not the Supply Code itself.